

STATE OF NEW YORK

1912--A

Cal. No. 472

2025-2026 Regular Sessions

IN SENATE

January 14, 2025

Introduced by Sens. RIVERA, BROUK, RAMOS, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- reported favorably from said committee and committed to the Committee on Finance -- reported favorably from said committee, ordered to first report, amended on first report, ordered to a second report and ordered reprinted, retaining its place in the order of second report

AN ACT to amend the social services law, in relation to medical assistance coverage for medically tailored meals and medical nutrition therapy for the purpose of disease management

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 2 of section 365-a of the social services law
2 is amended by adding a new paragraph (nn) to read as follows:

3 (nn) medically tailored meals and medical nutrition therapy. As used
4 in this paragraph, "medically tailored meals and medical nutrition ther-
5 apy" means nutritional assessment, nutritional therapy, and nutritional
6 counseling provided by a certified dietician or certified nutritionist,
7 and the provision of any food indicated by such assessment, therapy or
8 counseling and, ordered by a health care professional acting within
9 their lawful scope of practice under title eight of the education law,
10 for the purpose of treating one or more chronic conditions for an indi-
11 vidual who is limited in their activities of daily living; and provided
12 that there is federal financial participation in the costs of services
13 provided under this paragraph.

14 § 2. This act shall take effect on the one hundred eightieth day after
15 it shall have become a law. Effective immediately, the commissioner of
16 health shall adopt regulations and take other actions reasonably neces-
17 sary to implement this act on that date.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD04026-02-5